

ASCII MASTER FLOW – PANEL 1/12: Apex court, integrated hierarchy and institutional identity

ARTICLES 124-147, PART V: UNION JUDICIARY

Privy Council -> Federal Court (1937) -> Constitution (26 Jan 1950) -> SC (28 Jan 1950)

SUPREME COURT -> HIGH COURTS -> SUBORDINATE COURTS

one hierarchy applies Union + State law; Article 141 promotes national legal uniformity.

LIMIT: integrated does not mean unitary administration; Articles 226, 227 and 235 remain vital.

CONTROL CARD, 28 AUG 2026

sanctioned 34 including CJI | official sitting roster 34 | retirement 65

seat Delhi, Article 130 | Article 145(3): five-judge minimum for specified questions.

ASCII MASTER FLOW – PANEL 2/12: Appointment text, collegium evolution and NJAC test

ARTICLE 124: PRESIDENT APPOINTS -> CONSTITUTIONALLY REQUIRED CONSULTATION

Current operation: collegium recommendation -> Union processing -> presidential appointment.

First Judges Case (1981) -> executive primacy

Second Judges Case (1993) -> judicial primacy; collegium created

Third Judges Case (1998) -> SC collegium: CJI + four senior-most judges

2014 99th Amendment + NJAC Act -> six-member commission

Fourth Judges Case (2015) -> NJAC invalid; collegium restored

CJI SENIORITY: settled convention reflected in MoP, not express constitutional text.

REFORM TEST: transparent criteria + diversity + time discipline without executive capture.

ASCII MASTER FLOW – PANEL 3/12: Qualifications, service conditions and removal route

ELIGIBILITY -> Indian citizen + five years HC judge OR ten years HC advocate

OR distinguished jurist in the President's opinion; no minimum age.

OATH -> secure tenure to 65 -> resignation to President OR Article 124(4) removal

REMOVAL: proved misbehaviour/incapacity -> inquiry -> special majority in each House

-> presidential order; Constitution says removal, not impeachment.

FINANCIAL FIREWALL

salary charged under Article 112(3)(d)(i) | conditions protected by Article 125

Court administrative expenses charged under Article 146(3).

Article 124(7): former SC judge cannot plead or act before any Indian court/authority.

ASCII MASTER FLOW – PANEL 4/12: Independence and accountability must operate together

INDEPENDENCE SHIELD

appointment insulation | tenure | protected conditions | Article 121 | Article 129
Article 50 separation | binding authority | administrative and financial autonomy

ACCOUNTABILITY CHANNELS

reasoned judgments + recusals + disclosure + published collegium resolutions
1997 Restatement + 1999 in-house procedure: non-statutory
Article 124(4): extreme removal endpoint; no SC judge has been removed.

DIALECTIC

independence without accountability -> opacity
accountability without insulation -> political compliance
VERDICT -> independent decisions + transparent institutional process.

ASCII MASTER FLOW – PANEL 5/12: Jurisdiction gateway and the federal-rights routes

CHOOSE THE CONSTITUTIONAL DOOR

federal legal dispute among listed governments -> Article 131, exclusive original
Fundamental Right enforcement -> Article 32, itself a Fundamental Right
other public-law right -> High Court Article 226, wider in purpose

FIVE WRITS

habeas corpus: liberty | mandamus: public duty | prohibition: stop proceeding
certiorari: quash completed order | quo warranto: test public office

ARTICLE 131 LIMITS

eligible parties + existence/extent of legal right; not a political mediation forum.
Treaty proviso and Article 262 water-dispute exclusion must be checked.

ASCII MASTER FLOW – PANEL 6/12: Appeals, special leave and presidential reference

APPELLATE ROUTES

Article 132: constitutional | 133: civil | 134: criminal | 134A: certificate process

Article 136: extraordinary discretionary special leave, not a regular fourth appeal
no SLP from Armed Forces courts or tribunals.

ARTICLE 143 ADVISORY ROUTE

143(1): public-importance question; Court may report opinion

143(2): dispute within Article 131 proviso; Court shall hear and report

Opinion remains advisory, not an ordinary binding decree.

2025 ASSENT OPINION: no rigid court-made timelines or automatic deemed assent;
prolonged unexplained inaction remains reviewable. Use as dated, issue-specific evidence.

State of Tamil Nadu v. Governor of Tamil Nadu (2025) -> facts-specific assent relief.

In re Assent, Withholding or Reservation of Bills (2025) -> advisory control.

ASCII MASTER FLOW – PANEL 7/12: Finality, review, curative power and contempt

JUDGMENT -> ARTICLE 137 REVIEW -> FINALITY

review corrects prescribed error; it is not a rehearing of the appeal.

AFTER REVIEW DISMISSAL -> CURATIVE PETITION

Rupa Ashok Hurra (2002): rare grave-miscarriage route with added safeguards

LIMIT: no routine second review.

ARTICLE 129: COURT OF RECORD

permanent authoritative records + constitutional contempt power

civil contempt -> wilful disobedience | criminal contempt -> substantial interference

fair criticism and statutory truth defence protect speech; power protects justice, not ego.

ASCII MASTER FLOW – PANEL 8/12: Precedent, complete justice, assistance and procedure

ARTICLE 141 -> ratio of law declared binds all courts

larger Bench > smaller Bench; coordinate disagreement ordinarily goes to larger Bench.

ARTICLE 142 -> complete justice in the cause or matter before the Court

Prem Chand Garg -> cannot violate Fundamental Rights

Supreme Court Bar Association (1998) -> cannot supplant substantive law.

ARTICLE 144 -> civil and judicial authorities act in aid.

ARTICLE 145 -> rules; five-judge floor for Article 143 and substantial interpretation.

CONTINUITY TOOLS

126 acting CJI | 127 ad hoc judge | 128 retired judge sitting: distinct consent routes.

ASCII MASTER FLOW – PANEL 9/12: Judicial review, Basic Structure, Ninth Schedule and tribunals

CONSTITUTIONAL SUPREMACY → REVIEW OF LAW + EXECUTIVE ACTION + AMENDMENT EFFECT

Kesavananda Bharati (1973) -> amendment cannot damage Basic Structure

Minerva Mills (1980) -> limited power + Parts III-IV harmony

I.R. Coelho (2007) -> post-24 Apr 1973 Ninth Schedule insertions face impact review

LIMIT: reviewability is not automatic invalidity.

TRIBUNAL FLOOR

L. Chandra Kumar (1997) -> tribunals may supplement adjudication

BUT Articles 226/227 High Court review and Article 32 review cannot be wholly excluded.

Specialisation remains under constitutional-court supervision.

ASCII MASTER FLOW – PANEL 10/12: PIL, activism, judicial legislation and environment

ACCESS EXPANSION

relaxed locus standi + epistolary jurisdiction + continuing mandamus

Hussainara Khatoon (1979): speedy trial | S.P. Gupta (1981): representative standing

LIMIT: standing is relaxed, not erased; screen bona fides and administrability.

JUDICIAL LEGISLATION

Vishaka (1997): rights-based interim norm in legal vacuum until 2013 legislation

legitimacy test -> right + vacuum + necessity + temporary, legally anchored remedy.

ENVIRONMENTAL LINE

Article 21 + 48A + 51A(g) -> absolute liability, precaution, polluter pays, public trust

Court catalyses compliance; CPCB, State boards and NGT remain indispensable.

ASCII MASTER FLOW – PANEL 11/12: Comparison, diversity, profession and delivery reform

DIVERSITY -> equality + legitimacy + wider professional pipeline

Fathima Beevi (1989): first woman SC judge; avoid undated percentages.

INDIA-UK -> shared precedent; constitutional supremacy versus parliamentary sovereignty

INDIA-USA -> collegium + retirement 65 versus nomination + Senate + good-behaviour tenure

PROFESSION -> State Bar Councils enrol; BCI sets national statutory standards and appeals

BCI is statutory, not constitutional; courts retain practice and proceeding rules.

DELIVERY CHAIN

accessible filing -> timely listing/hearing -> reasoned order -> implementation

technology + legal aid + judges + case management; e-Courts alone cannot cure exclusion.

ASCII MASTER FLOW – PANEL 12/12: Prelims firewalls, PYQ routes and examiner-ready synthesis

PRELIMS FIREWALL

Article 32 narrower in purpose than 226 | Article 136 discretionary | 143 advisory
Article 142 bounded | Constitution Bench minimum five | curative is exceptional
collegium not constitutional text | removal is not impeachment | working strength is dated.

PYQ ROUTES

India-UK | judicial legislation/PIL | women | environmental constitutionalism
independence | PIL and judicial power | constitutional morality | India-USA appointments.

MAINS SPINE

define institutional role -> Article -> mechanism -> case + year -> consequence
-> counterpoint/limit -> matched reform -> qualified conclusion.

VERDICT

The Court guards constitutional supremacy only when independent authority is joined to
reasoned restraint, accountable process, accessible remedies and executable orders.